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The numbers in the left margin indicate the approximate page numbers of the published version.

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Basic Needs

THOMAS PÖLZLER
Department of Philosophy, University of Graz, Austria

Introduction

To prevent the spread of COVID-19, the state of Austria for some time forbad people to enter public spaces. One of the few exceptions from this rule, stated in § 3 Z 1 of the COVID-19-Law, refers to basic needs. It says that entering public spaces is allowed if doing so is required "to meet the necessary basic needs of daily life" ("zur Deckung der notwendigen Grundbedürfnisse des täglichen Lebens").

Basic needs have been appealed to in many other social and legal contexts as well. For example, they have played a role in attempts to justify universal human rights and minimal social welfare measures (such as benefits for the very poor); they have functioned as a measure of well-being, in particular in regards to the justness of our relations to the developing world and to future generations; they have been used to define what it means for economies to develop sustainably; and they have been used as a criterion for prioritizations in health care.

This entry provides an overview of some of the main philosophical issues surrounding basic needs. In particular, it will address the following three questions: What are basic needs? Why, by whom, and to what extent should basic needs be satisfied? And what are advantages and disadvantages of appealing to them? For more detailed overviews of this topic, see Brock and Miller (2019), Dover (2016), and Pölzler (2021) (on which this entry partly draws).

What Are Basic Needs?

Outside of philosophy, basic needs are often defined extensionally. That is, those who appeal to them simply provide a list of all or some of the things that they regard as falling under the concept. The state of Austria, for instance, supplemented § 3 Z 1 of its COVID-19-Law by examples such as "provision with basic goods of daily life," "usage of health care services," and "contact with closest relatives" And the United Nations' *Research Institute for Social*

Development defined basic needs in terms of nutrition, shelter, health, education, leisure, security, and environment (Drewnowski 1966).

From a philosophical point of view, such extensional definitions cannot be entirely satisfactory. The problem is that they fail to specify in virtue of what features things count as basic needs. This means that the definitions do not provide guidance in cases in which it is unclear whether something is or is not a basic need. For example, is leisure really a basic need? Should we maybe consider self-respect to be a basic need as well? Extensional definitions also do not explain why meeting basic needs is morally important. Philosophers have hence typically strived for an intensional analysis, i.e., they have attempted to provide necessary and sufficient – or at least characteristic – conditions for the application of the concept.

222 As with any other concept, philosophers disagree about the details of the conditions that a thing must fulfill to count as a basic need. That said, there has been at least some convergence with regard to the general outlines of the concept. The most common philosophical definition of basic needs is in terms of harm. It says that a person has a basic need for something if and only if this thing is necessary for the person to avoid being harmed (e.g., Braybrooke 1987; Doyal and Gough 1991; Thomson 2005; Wiggins 1998). Moreover, other than with nonbasic needs, this harm must be serious in the sense that it involves (the risk of) death or impairments of normal functioning (Doyal and Gough 1991; Feinberg 1986; Schuppert 2013), and the harm must be necessary in the sense that it cannot be avoided due to laws of nature or highly invariant facts about humans and their environment (Siebel and Schramme 2020; Thomson 2005; Wiggins 1998).

Food is an example of a thing that obviously qualifies as a basic need on this standard definition. If a person does not eat for a long time, then they will be harmed in a serious way. They will become apathetic, suffer from organ damage, and at some point even die. Moreover, there is not much that can be done about this. If the period of starvation is long enough, then harm along these lines will inevitably materialize. Thus, according to the standard definition, food – or nutrition more generally (Drewnowski 1966) – is to be classified as a basic need.

However, there are also more controversial cases. To be able to determine whether things such as leisure or self-respect are basic needs, a more detailed definition is required. Most importantly, proponents of basic needs must explain what kind of harm the non-satisfaction of these needs is supposed to necessitate. Several related but competing accounts have been given. For example, it has been argued that the harm of basic needs deprivation consists in

falling below some minimal level of autonomy (e.g., Copp 1995; Doyal and Gough 1991; Meyer and Pölzler 2022), in falling below some minimal level of (rational) agency (e.g., Brock 2005; Schuppert 2013), or in not being able to sufficiently participate in society any longer (e.g., Braybrooke 1987; Miller 1999).

One difficulty in evaluating these variants of the standard definition, as well as alternative definitions (e.g., Hassoun 2008; Stewart 1985; Wolf 2007), is that it is not clear which methods should be used in doing so. Social scientists have tended to stipulate the meaning of *basic needs* rather freely (e.g., Hicks and Streeten 1979; Stewart 1985; Streeten and Burki 1978). Philosophers, on the other hand, have also tried to capture how ordinary speakers use the concept (e.g., Braybrooke 1987; Brock 2005; Copp 1998; Gasper 2007). Claims about this folk usage have traditionally been justified by philosophers generalizing from their own conceptual intuitions or by their own personal observations. In recent years, however, there have also been attempts to study ordinary speakers' conceptual intuitions about basic needs in a scientific manner (Pölzler and Hannikainen forthcoming; Pölzler and Tomabechi under review).

Another complication arises from the fact that basic needs can be defined at different levels of abstraction. It is generally acknowledged that these needs (e.g., the basic need for food) must be distinguished from the resources that can satisfy them (e.g., Wiener Schnitzel, Sushi and Enchiladas) (Max-Neef 1991). But this distinction is less clear than it might seem at first. For example, while most researchers regard food and water as basic needs, Doyal and Gough (1991) only classify them as "universal satisfiers" for other fundamental basic needs, namely the needs for physical health and autonomy.

Finally, it is likely that there is no such thing as "the" definition of basic needs at all. Different contexts (such as human rights, justice, or sustainability) and different theories might allow for or even require at least somewhat different understandings of the concept.

Why, by Whom, and to What Extent Should Basic Needs be Satisfied?

According to the standard definition introduced above, a thing is a basic need if and only if its non-satisfaction causes serious harm which cannot be escaped from. This definition entails that the non-satisfaction of basic needs is independently normatively relevant. In other words, the fact that a person's basic needs are unsatisfied by itself "makes demands on us": it gives us at least defeasible reason to satisfy these needs (as the person would otherwise be seriously harmed without standing any chance of avoiding this harm) (Brock and Miller 2019).

The recognition that the concept of basic needs is inherently normative may explain some of its contestedness. It means that different individuals and social groups have self-interested reasons to understand the concept in different ways. To give but one simple example, rich people are best served by a definition that only acknowledges few things as basic needs. After all, through their taxes and other means, it is them who will have to pay for enabling some other members of their society to satisfy these needs. Poor people, on the other hand, will more naturally advocate for expansive definitions that also include items such as education, employment, self-respect, etc. (as they are more likely to be recipients of basic needs satisfiers).

The normativity of basic needs also has important philosophical consequences. First of all, it raises some intricate puzzles in metaethics, the philosophical study of moral reality, language, and knowledge. Basic needs are typically thought of as objective parts of the natural world. It is assumed that whether a person has a basic need does not depend on what they themselves or anybody else thinks (see Section "What Are Advantages and Disadvantages of Appealing to Basic Needs?"). However, it is not clear how some entity can be both an objective part of the natural world and at the same time normative. This would mean that in some sense the world itself (not humans, God or some other beings) is making demands on us – an idea that philosophers have grappled with for a long time (e.g., Mackie 2011; Moore 1993).

Another important philosophical question about basic needs' normativity concerns the bearers of the duty to satisfy these needs. Some researchers have emphasized that attending to needs is a central part of caring personal relationships (Bubeck 1995; Reader 2007). In contrast, in social and legal contexts, it has typically been assumed that providing people with the means to satisfy their basic needs is mostly the obligation of states. This may be justified by pointing out that some of these means, such as a functioning health care system or labor market, just cannot be provided by individuals on their own (Pölzler 2021).

Suppose it is true that states have a duty to enable people to meet their basic needs. Unfortunately, in the real world, some states lack the resources or motivation to fully comply with this duty. They leave some or many basic needs unmet. This introduces the need for principles that guide potential trade-offs (Brock and Miller 2019). In particular, researchers must address two questions. First, how ought claims to basic needs satisfaction be weighed against other moral claims that people have, such as claims grounded in equality or desert? And second, how ought some people's claims to basic needs satisfaction be weighed against other people's claims to basic needs satisfaction?

Most researchers agree that meeting basic needs is more important than satisfying other moral claims; and that meeting the basic needs of those who are most deprived is more important than meeting the basic needs of better-off persons. But the strength of this priority has remained contested. While some have regarded it as absolute, others have permitted trade-offs. They have argued that it can sometimes be justified for states to meet other obligations before all basic needs are satisfied, or to meet the basic needs of the not-so-badly-off before
224 those of the worst-off have been met (e.g., because fully meeting all basic needs or all basic needs of the worst-off can be extremely costly) (e.g., Copp 1998; Miller 1999; Rendall 2019).

Researchers who have taken this latter – non-absolutist – view have proposed a number of additional criteria for weighing the importance of basic needs satisfaction. For example, they have argued that states ought to prioritize people to the extent to which these people's basic needs can be satisfied at comparably low cost (e.g., Copp 1998), to the extent to which these people are effective in converting resources into basic needs satisfaction (e.g., Miller 2020), and to the extent to which these people are not themselves responsible for their basic needs deprivation (e.g., Segall 2010).

It is unlikely that any simple principle will emerge from these discussions. Balancing basic needs claims seems to require consideration of many different factors (Miller 2020). Moreover, one's view will again also crucially depend on general methodological decisions. Are needs-related distributions to be justified based on researchers' own normative intuitions (e.g., Wiggins 1998)? Based on personal observations about the normative intuitions of ordinary people (e.g., Braybrooke 1987; Copp 1995)? Based on scientific data about these intuitions (e.g., Hassoun 2009; Miller 2020)? It has remained contested which of these and other approaches is most suitable.

What Are Advantages and Disadvantages of Appealing to Basic Needs?

The previous sections have shown that appeals to basic needs raise a number of difficult philosophical questions. Still, many researchers have continued to use the concept. After a temporary decline (mostly explained by the advent of the competing capabilities approach) it has, in fact, recently witnessed a revival. Why is this? What makes drawing on basic needs appealing?

I have already touched upon this question in the previous section. There I suggested that if the standard definition is correct then basic needs are independently normatively relevant. This makes them well-suited for grounding normative theories. In addition, proponents of needs-based theories have also claimed several other advantages vis-à-vis relevant alternative

concepts or measures of well-being (such as preference satisfaction, impersonal resources, or capabilities). They have in particular pointed out that basic needs (1) allow for a plausible specification of a threshold of well-being, (2) are objective, (3) are universal, and (4) increase practical effectiveness.

Some normative theories distinguish between lives that are minimally decent and lives that lack this quality. It has proven difficult to specify this distinction in a plausible way. For example, why should having 30% of one's preferences satisfied, earning $2 a day, or having 20 valued capabilities be enough, while having 29% of one's preferences satisfied, earning $1.99 a day, or having 19 valued capabilities is not? Aren't these thresholds arbitrary (Casal 2007)? Aren't we overstating their moral significance (Arneson 2005)? In contrast, it has been claimed that being able to meet one's basic needs for food, water, shelter, etc., constitutes a much less arbitrary and much more morally significant threshold for the minimally decent life (e.g., Benbaji 2005; Miller 2007).

Another often-claimed advantage of basic needs is that they are objective and universal. That basic needs are objective entails that people can be mistaken about their basic needs. For example, even if I think that I do not have a basic need for education I could still in fact have such a need. The objectivity of basic needs would hence mean that these needs can be determined and measured by third-person means, such as established and readily available data about life expectancy at birth, health expenditure, or poverty rates. We would not have to engage in surveys or political decision-making (e.g., Gough 2017; Meyer and Pölzler 2022; Reader 2007).

If basic needs were universal – if all humans had the very same basic needs, regardless of where and when they live – we would not even have to study particular populations to identify their basic needs. We could simply extrapolate from our own. This is particularly advantageous in cases in which the basic needs of a population cannot be studied for practical or logical reasons. For example, under the assumption of universality, we could be sure that people in certain war-ridden or secluded areas have the same basic needs as us, and that this even holds for people who will only live in the future (e.g., Brock 2005; Reader 2007; Meyer and Pölzler 2022).

Finally, some advocates of basic needs have argued that the concept makes normative theories more practically effective. This claim has been supported in three main ways. First, ordinary people easily understand demands that are framed in terms of basic needs (compared, e.g., to capabilities) (Wiggins 1998). Second, ordinary people readily accept these demands. There is significantly more skepticism towards concepts such as human rights

(which are sometimes associated with Western moral imperialism) (Miller 1999). And third, to say that someone has an unmet basic need has a greater motivational force than saying that someone has an unsatisfied preference or lacks certain capabilities (Pinzani 2013; Schuppert 2013).

It is not clear to what extent the above advantages – plausible threshold-specification, objectivity, universality, and practical effectiveness – really hold. They assume a number of controversial philosophical and empirical claims. Moreover, appealing to basic needs comes with certain disadvantages as well. The flipside of these needs' purported objectivity and universality, for example, is a risk of falling into paternalism. States that are guided by concerns about basic needs may end up providing resources to satisfy basic needs that people themselves regard as already being sufficiently satisfied or that people do not even accept as basic needs (e.g., Alkire 2002). Another common complaint is that needs-based theories are materialistic and instill a mindset of dependency and passivity in people (e.g., Sen 1984).

These problematic tendencies can be alleviated to at least some extent. For example, even though people may not be able to decide their basic needs themselves they can still be given the opportunity to decide whether and how to satisfy these needs (e.g., Meyer and Pölzler 2022). Lists of basic needs often include nonmaterial items such as "contact with closest relatives" (such as in the Austrian COVID-19-Law) and "education" (Drewnowski 1966). And it has been argued that states ought to enable people to meet their basic needs through their own efforts (e.g., through employment) rather than by providing bundles of goods (e.g., Copp 1998).

Still, further work remains to be done to show that the concept of basic needs is superior to alternatives such as preference satisfaction or capabilities. It might also turn out that different concepts are best suited for different contexts or theories, and that appeals to basic needs become more fruitful if they are somewhat assimilated to certain alternatives, in particular to the idea of capabilities (Fardell 2020; Petz under review).

Conclusion

In some social and legal contexts, people appeal to the idea of basic needs. For example, the idea has been used to specify COVID-19-laws, to guide international development, to ground theories of justice, and to define sustainable development. To be able to evaluate these appeals, we need to have some understanding of (1) what basic needs are, (2) why, by whom, and to what extent they should be satisfied, and (3) what are advantages and disadvantages of appealing to them. This entry set out to address these questions.

I first explained that researchers mostly agree on the broad outlines of the concept. They
226 assume that a person has a basic need for something if and only if this thing is necessary for the person to avoid serious harm (e.g., in the sense of reducing their autonomy, agency, or social functioning). This connection to harm explains why meeting basic needs matters. Even though states would ideally enable all people to meet their basic needs, in reality, difficult trade-offs are inevitable. Moreover, to show that basic needs are superior to competing alternative concepts, a number of challenges must be addressed more thoroughly.

Hopefully, researchers will take up the mentioned challenges soon. The idea of basic needs certainly holds significant potential for informing decisions in many social and legal contexts.

Acknowledgments

Thomas Pölzler's work on this chapter was funded by the Japan Society for the Promotion of Science (PE21001) and by the Austrian Science Fund (P33169).

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